

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED					
29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED	

Section A - Solicitation/Contract Form

INR Hotel Lodging

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Manhattan - Times Square Area - New York - 20 June to 09 July 2026 SEE REQUIRED SCHEDULE IN PWS FOR ADDITIONAL DETAILS Pricing Arrangement: Firm Fixed Price	257	Each		
0002	Manhattan - LaGuardia - New York - 20 June 2026 to 9 July 2026 SEE REQUIRED SCHEDULE IN PWS FOR ADDITIONAL DETAILS Pricing Arrangement: Firm Fixed Price	43	Each		
0003	Manhattan - JAVITS - New York - 20 June to 09 July 2026 SEE REQUIRED SCHEDULE IN PWS FOR ADDITIONAL DETAILS & DOG FRIENDLY REQUIREMENT Pricing Arrangement: Firm Fixed Price	43	Each		
0004	Brooklyn - New York - 20 June 2026 - 9 July 2026 SEE REQUIRED SCHEDULE IN PWS FOR ADDITIONAL DETAILS Pricing Arrangement: Firm Fixed Price	136	Each		
0005	Manhattan - Pier 88 - New York - 20 June to 09 July 2026 SEE REQUIRED SCHEDULE IN PWS FOR ADDITIONAL DETAILS Fleet Landing 1 - Near Pier 88 Fleet Landing 2 - Wall Street Pier 11 - Lower Manhattan Fleet Landing 3 - Battery Park - Lower Manhattan Pricing Arrangement: Firm Fixed Price	204	Each		
0006	Edgewater - New Jersey - 20 June 2026 - 9 July 2026 SEE REQUIRED SCHEDULE IN PWS FOR ADDITIONAL DETAILS Pricing Arrangement: Firm Fixed Price	136	Each		
0007	Teterboro - New Jersey - 20 June 2026 - 9 July 2026 SEE REQUIRED SCHEDULE IN PWS FOR ADDITIONAL DETAILS Pricing Arrangement: Firm Fixed Price	55	Each		

Section C - Description/Specifications/Statement of Work

Performance Work Statement 2026 International Naval Review

BACKGROUND:

Commander, Navy Region Mid-Atlantic (CNRMA) requires multiple sets of hotel rooms during various timeframes between 20 June 2026 and 10 July 2026 in New York City to accommodate personnel supporting the 2026 International Naval Review. Due to the operational requirements associated with the unique nature of these duties and responsibilities during 2026 INR, hotel accommodations are required from properties strategically located within each Navy group's immediate work area throughout the greater Manhattan, Queens (LaGuardia), Brooklyn, and Teterboro, NJ area.

To meet these ongoing lodging needs, CNRMA seeks to establish an open-source hotel contract with reputable hotel partners maintaining properties in Manhattan, Queens, Brooklyn, and Teterboro, NJ. The objective is to secure consistent and flexible accommodations under a unified agreement, ensuring competitive rates, reliable availability, and standardized service levels across multiple locations.

SCOPE:

This contract establishes an open-source agreement for the provision of hotel lodging accommodations in support of 2026 INR operations in New York City. The requirement includes up to an estimated 6,080 total room nights (see Paragraph 2 for the room night breakdown by CLIN) to accommodate U.S. Navy personnel performing official duties in support of 2026 INR on and around the Fourth of July.

Hotel accommodations shall include multiple single and double occupancy rooms, designated as run of house, across multiple dates and timeframes. Lodging facilities must be strategically located within each Navy group's immediate work area in Manhattan, Queens, Brooklyn, New York, and Teterboro New Jersey to ensure operational efficiency and timely access to assigned duty locations.

Participating hotels must be reputable, full-service or limited-service properties with consistent standards of quality, safety, and reliability. The intent of this contract is to provide flexible and cost-effective lodging under a unified agreement that ensures competitive rates, consistent availability, and standardized service levels across multiple properties within the greater New York City area.

1. Definitions:

Single Occupancy Room:

A hotel guest room designed to accommodate one occupant, typically furnished with one standard bed (such as a twin, full, queen, or king) and standard room amenities including a private bathroom.

Double Occupancy Room:

A hotel guest room designed to accommodate two occupants, typically furnished with two separate beds (such as two twin or double beds) or one shared bed (queen or king), as available under the hotel's standard configuration ("run of house"). The room shall include standard hotel amenities and a private bathroom.

2. Number of Rooms and Date Range Required:

CLIN 0001

Manhattan - Time Square Area - New York

Manhattan - Time Square Area - New York 21 June 2026 - 9 July 2026		
Day	Date	Total # of Required Rooms Per Night
Sunday	21-Jun-2026	0
Monday	22-Jun-2026	3
Tuesday	23-Jun-2026	4
Wednesday	24-Jun-2026	41
Thursday	25-Jun-2026	69
Friday	26-Jun-2026	69

Saturday	27-Jun-2026	89
Sunday	28-Jun-2026	138
Monday	29-Jun-2026	138
Friday	30-Jun-2026	157
Saturday	1-Jul-2026	165
Tuesday	2-Jul-2026	247
Wednesday	3-Jul-2026	257
Thursday	4-Jul-2026	257
Sunday	5-Jul-2026	257
Monday	6-Jul-2026	257
Tuesday	7-Jul-2026	257
Wednesday	8-Jul-2026	172
Thursday	9-Jul-2026	0
21 June 2026 - 9 July 2026		
Total # Single/Double Rooms	257	
Total # Run of House	257	
Total Room Nights	2577	

CLIN 0002

Manhattan - LaGuardia - New York

Manhattan - LaGuardia - New York 20 June 2026 - 9 July 2026		
Day	Date	Total # of Required Rooms Per Night

Wednesday	24-Jun-2026	0
Thursday	25-Jun-2026	0
Friday	26-Jun-2026	0
Saturday	27-Jun-2026	0
Sunday	28-Jun-2026	0
Monday	29-Jun-2026	0
Tuesday	30-Jun-2026	43
Wednesday	1-Jul-2026	43
Thursday	2-Jul-2026	43
Friday	3-Jul-2026	43
Saturday	4-Jul-2026	43
Sunday	5-Jul-2026	43
Monday	6-Jul-2026	43
Tuesday	7-Jul-2026	43
Wednesday	8-Jul-2026	43
Thursday	9-Jul-2026	0
20 June 2026 - 8 July 2026		
Total # Single/Double Rooms	43	
Total # Run of House	43	
Total Room Nights	387	

Manhattan - JAVITS - New York 20 June 2026 - 9 July 2026		
Day	Date	Total # of Required Rooms Per Night
Sunday	21-Jun-2026	6
Monday	22-Jun-2026	6
Tuesday	23-Jun-2026	80
Wednesday	24-Jun-2026	96
Thursday	25-Jun-2026	96
Friday	26-Jun-2026	97
Saturday	27-Jun-2026	98
Sunday	28-Jun-2026	108
Monday	29-Jun-2026	175
Tuesday	30-Jun-2026	235
Wednesday	1-Jul-2026	281
Thursday	2-Jul-2026	443
Friday	3-Jul-2026	470
Saturday	4-Jul-2026	472
Sunday	5-Jul-2026	472
Monday	6-Jul-2026	472
Tuesday	7-Jul-2026	472
Wednesday	8-Jul-2026	448
Thursday	9-Jul-2026	0
21 June 2026 - 9 July 2026		

Total # Single/Double Rooms	472	
Total # Run of House	472	
Total Room Nights	4527	

CLIN 0004
Brooklyn - New York

Brooklyn - New York 20 June 2026 - 9 July 2026		
Fleet Landing 5 - Brooklyn Pier 4		
Day	Date	Total # of Required Rooms Per Night
Saturday	20-Jun-2026	0
Sunday	21-Jun-2026	0
Monday	22-Jun-2026	0
Tuesday	23-Jun-2026	0
Wednesday	24-Jun-2026	110
Thursday	25-Jun-2026	110
Friday	26-Jun-2026	110
Saturday	27-Jun-2026	110
Sunday	28-Jun-2026	110
Monday	29-Jun-2026	113
Tuesday	30-Jun-2026	117
Wednesday	1-Jul-2026	118
Thursday	2-Jul-2026	136

Friday	3-Jul-2026	136
Saturday	4-Jul-2026	136
Sunday	5-Jul-2026	118
Monday	6-Jul-2026	118
Tuesday	7-Jul-2026	118
Wednesday	8-Jul-2026	118
Thursday	9-Jul-2026	
20 June 2026 - 8 July 2026		
Total # Single/Double Rooms	136	
Total # Run of House	136	
Total Room Nights	1778	

CLIN 0005
Manhattan - Pier 88 - New York

Manhattan - Pier 88 - New York 20 June 2026 - 9 July 2026		
Fleet Landing 1 - Near Pier 88 Fleet Landing 2 - Wall Street Pier 11 - Lower Man Fleet Landing 3 - Battery Park - Lower Man		
Day	Date	Total # of Required Rooms Per Night
Sunday	21-Jun-2026	4
Monday	22-Jun-2026	7
Tuesday	23-Jun-2026	14
Wednesday	24-Jun-2026	14
Thursday	25-Jun-2026	14

Friday	26-Jun-2026	19
Saturday	27-Jun-2026	79
Sunday	28-Jun-2026	134
Monday	29-Jun-2026	158
Tuesday	30-Jun-2026	181
Wednesday	1-Jul-2026	187
Thursday	2-Jul-2026	204
Friday	3-Jul-2026	204
Saturday	4-Jul-2026	204
Sunday	5-Jul-2026	204
Monday	6-Jul-2026	204
Tuesday	7-Jul-2026	204
Wednesday	8-Jul-2026	105
Thursday	9-Jul-2026	0
21 June 2026 - 9 July 2026		
Total # Single/Double Rooms	204	
Total # Run of House	204	
Total Room Nights	2140	

CLIN 0006
Edgewater - New Jersey

Edgewater - New Jersey 20 June 2026 - 9 July 2026
Fleet Landing 6 - Edgewater NJ

Day	Date	Total # of Required Rooms Per Night
Saturday	20-Jun-2026	0
Sunday	21-Jun-2026	0
Monday	22-Jun-2026	0
Tuesday	23-Jun-2026	0
Wednesday	24-Jun-2026	110
Thursday	25-Jun-2026	110
Friday	26-Jun-2026	110
Saturday	27-Jun-2026	110
Sunday	28-Jun-2026	110
Monday	29-Jun-2026	113
Tuesday	30-Jun-2026	117
Wednesday	1-Jul-2026	118
Thursday	2-Jul-2026	136
Friday	3-Jul-2026	136
Saturday	4-Jul-2026	136
Sunday	5-Jul-2026	118
Monday	6-Jul-2026	118
Tuesday	7-Jul-2026	118
Wednesday	8-Jul-2026	118
Thursday	9-Jul-2026	0
20 June 2026 - 8 July 2026		

Total # Single/Double Rooms	136
Total # Run of House	136
Total Room Nights	1778

CLIN 0007
Teterboro - New Jersey

Teterboro - New Jersey Open Source - Waiting Contract 20 June 2026 - 9 July 2026		
Fleet Landing 6 - 989 River Road, Edgewater, NJ		
Day	Date	Total # of Required Rooms by Night
Saturday	20-Jun-2026	0
Sunday	21-Jun-2026	0
Monday	22-Jun-2026	0
Tuesday	23-Jun-2026	0
Wednesday	24-Jun-2026	0
Thursday	25-Jun-2026	0
Friday	26-Jun-2026	0
Saturday	27-Jun-2026	0
Sunday	28-Jun-2026	0
Monday	29-Jun-2026	4
Tuesday	30-Jun-2026	55
Wednesday	1-Jul-2026	55
Thursday	2-Jul-2026	55
Friday	3-Jul-2026	55

Saturday	4-Jul-2026	55
Sunday	5-Jul-2026	55
Monday	6-Jul-2026	55
Tuesday	7-Jul-2026	55
Wednesday	8-Jul-2026	55
Thursday	9-Jul-2026	0
20 June 2026 - 8 July 2026		
Total # Single/Double Rooms	55	
Total # Run of House	55	
Total Room Nights	499	

3. Hotel Facility Requirements:

The hotel shall be available to all, regardless of race, creed, national origin or gender. Facilities shall be handicapped accessible. Additionally, the "double rooms" (2 beds in each room) shall be large enough to accommodate two (2) Navy Personnel plus their corresponding personal effects and gear. Each bed shall have a firm mattress with box springs, mattress pad or cover, two pillows (pillows shall be at least six inches thick to provide proper support) and pillowcases, two sheets, one blanket, and one bedspread.

The hotel rooms to be quoted shall be "smoke-free" unless specifically requested by the occupant to be "smoke-friendly" upon check-in. These requests shall be accommodated only if smoke-friendly rooms are available at no additional cost to the government.

Proximity and Accessibility: Hotels selected under this contract shall be located within less than one (1) mile walking distance of the following operational sites to ensure convenient and timely access for U.S. Navy personnel:

Javits Center - 429 11th Ave, New York, NY 10001 - (pet friendly for Police K9)
Near Time Square, within an area bounded by 6th & 8th Avenue and 42nd and 49th Street
Pier 88 - 12th Ave & W 48th St, New York, NY 10036
LaGuardia Airport, East Elmhurst, New York, NY 11371
Teterboro, NJ, Airport, 111 Industrial Ave, Teterboro, NJ 07608
989 River Road, Edgewater NJ
Brooklyn Bridge (4 Pier 2 Promenade, Brooklyn, New York - Fleet Landing Pier 4)

This strategic location shall enable Navy personnel to commute a maximum travel time of under 20 minutes without traffic delays, including routes involving bridges or tunnels. Hotels shall be situated in proximity to restaurants, coffee shops, delis, and other establishments that provide a wide variety of convenient options for food, water, and other personal necessities, minimizing the need for prolonged or costly travel within Manhattan.

Hotel locations should provide safe and accessible pedestrian routes to the above sites and have easy access to public transportation and parking to support operational flexibility.

3.1 Staging Area:

The hotel shall provide a convenient and weather-protected staging area for U.S. Navy personnel to organize and manage gear and equipment during check-in and check-out operations. The area shall be easily accessible from the main entrance or loading zone and capable of safely accommodating multiple personnel and their equipment simultaneously.

3.2 Hotel Rating:

The hotel shall maintain a minimum average public rating of 3.8 or higher on TripAdvisor or Google Reviews at the time of contract award.

3.3 Fitness and Business Facilities:

The hotel shall provide access to a fitness center (gym) and a business center, both available to guests 24 hours per day, 7 days per week.

3.4 In-Room Amenities:

Each guest room shall be equipped with a refrigerator and a coffee maker in good working condition, available for guest.

3.5 Front Desk Operations:

The hotel shall maintain a front desk staffed 24 hours per day, 7 days per week, to provide continuous guest support, check-in/check-out services, and emergency assistance.

3.6 Dedicated Coordination Point of Contact:

For the duration of Navy personnel occupancy, the hotel shall designate a dedicated representative responsible for coordinating all lodging-related matters, including room reservations, cancellations, early check-outs, extensions, and other administrative adjustments, directly with the designated Government Point of Contact (POC). This representative shall be available by phone and email during normal business hours and provide timely responses to all official lodging coordination requests. Favorable consideration shall be given to properties providing a centralized POC across multiple properties included in your proposal.

3.7 Room Climate Control:

Each guest room shall be equipped with individual, room-controlled heating and air conditioning units that include adequate ventilation to maintain occupant comfort under varying weather conditions. All climate control systems shall be in good working order at the time of guest occupancy.

3.8. Security Requirements

3.8.1 General Security:

The hotel shall provide a safe and secure environment for all U.S. Navy personnel and their property for the duration of their stay. The facility shall maintain adequate lighting, controlled access to guest areas, and operational security cameras in common areas such as entrances, hallways, elevators, and parking facilities. The assigned POC shall have the ability to directly contact the most senior representative responsible for property security as assigned 24 hours a day, 7 days a week. Each premises must maintain a security log across each shift, detailing at a minimum; date, time, locations, personnel involved, personnel notified, and adjudication of such; for each hazard, incident, event, or suspicious activity encountered. Such logs and security camera footage, must be made available for review upon request, as part of investigative or response requirements, to the extent permitted by federal and local laws. Each facility shall have a protocol for testing and recording the functionality of all installed security and emergency response mitigation equipment upon at least daily. Additionally, a procedure for reporting findings and tracking adjudication must be in place, with a mechanism to return to full operational status within 24hrs of notification.

3.8.2 Staff Awareness:

Hotel management shall ensure that all staff members are aware of and adhere to appropriate security protocols, including maintaining guest privacy and promptly reporting any suspicious activity to local law enforcement and the designated Government Point of Contact (POC). Upon request, property management shall furnish training records for staff, covering at a minimum- guest privacy, emergency response related to fire, active shooter, security breaches, and other hazards, incidents, or events reasonably expected by industry or government standards. Each proposal shall include a copy of facility policy regarding sharing of guest information by staff, and shall include, at a minimum, expressly restricting the sharing guest information to any third party, without the express permission of the guest; excluding upon request of the designated Government POC, or local, state, federal law enforcement as permitted by law when acting in their official capacity to carry out law enforcement duties.

3.8.3 Room Security:

Each guest room shall be equipped with a functioning door lock and interior deadbolt or latch, as well as an in-room safe or secured alternative for valuables. Individual room doors should be secured by electronic entry mechanisms with the ability to review access records upon request 24 hours per day, 7 days per week. Additionally, access to rooms shall only be accessible via a central lobby, with access from the interior of the property, with no access to open-air entry/exit points.

3.8.4 Emergency Procedures:

The hotel shall have clearly posted and communicated emergency evacuation and safety procedures. Staff shall be trained to respond to fire alarms, medical emergencies, and security incidents in accordance with local regulations and hotel policy.

4. Additional Rooms:

Additional rooms, (10 single room nights and 10 double room nights) shall be provided by the contractor at any time during the period of performance) at the rates identified in CLINs 0001-0002 when requested by the Contracting Officer, subject to room availability.

5. Cancellation:

The Government reserves the right to cancel the contracted room nights at no cost, provided that such cancellations are communicated in writing by the Contracting Officer to the Contractor/Hotel Sales Manager or their designated representative no later than 20 Days prior to the scheduled occupancy date.

5.1. No Show (Check-In); Early Dismissal (Check-Out):

The Contractor shall provide with their proposals, the "No-Show (check-in) and Early Dismissal (check-out)" policies applicable for the 2026 INR hotel requirements. Due to various INR events at different periods within the time frame that hotel rooms are required, service personnel may be required to either check-in late, check-out (Early Dismissal), or "No-Show" to accommodate operational schedules throughout NYC. The Government will incur no charges for Early Dismissals (early check-out) since service personnel will be checking-out at the hotel front desk prior to their departure.

6. Internet

All of the room accommodations shall include internet access at no additional charge.

7. Parking:

Hotel shall specify if parking is available at the hotels facilities or in the surrounding area to ensure the government can make parking arrangements.

8. Hotel Safety Requirements:

To be eligible for award, the hotel must be compliant with the requirements of the Hotel and Motel Fire Safety Act of 1990 (Public Law 101-391) (15 U.S.C. 2201 et. Seq.), and is listed on the U.S. Fire Administration Hotel and Motel National Master List found at <http://www.usfa.fema.gov/hotel/search.cfm>. Offers proposing facilities that are not listed will be rejected as non-responsive. In addition, the offeror's facility must be compliant with the requirements of the Americans with Disabilities Act (Public Law 101-336) (42 U.S.C. 12010 et. seq.).

9. Hotel Health Requirement:

Hotel must also follow the New York City Department of Health guidelines for prevention, detection, and elimination of bed bugs in hotels found at <http://www.nyc.gov/html/doh/html/vector/vector-faq1.shtml>, as well as other pertinent federal, state, and local laws.

10. Contract Award:

The Government reserves the right to make multiple awards for hotel room accommodations or to award a single bulk contract to one contractor, whichever is determined to be in the best interest of the Government based on availability, pricing, location, and overall value.

11. Technical Point of Contact:

Name: Elizabeth Reisen
Email: Elizabeth.c.reisen.civ@us.navy.mil
Phone: 757-322-2858

Requirements

Commander, Navy Region Mid-Atlantic (CNRMA) requires multiple sets of hotel rooms during various timeframes between 20 June 2026 and 10 July 2026 in New York City to accommodate personnel supporting the 2026 International Naval Review.

Additional Regulation or Supplemental Clauses Incorporated by Full Text

SUPTXT243-9400(1-92) AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER (May 2025)

THE FOLLOWING NAVSUP LOCAL TEXT IS HEREBY MADE PART OF THE STATEMENT OF WORK /PERFORMANCE WORK STATEMENT.

AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof.

Section D - Packaging and Marking

Section E - Inspection and Acceptance

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-4	Inspection of Services-Fixed-Price.	Aug 1996		

Section F - Deliveries or Performance

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Period of Performance From 20 Jun 2026 To 09 Jul 2026	257 Each	
0002	Period of Performance From 20 Jun 2026 To 09 Jul 2026	43 Each	
0003	Period of Performance From 20 Jun 2026 To 09 Jul 2026	43 Each	
0004	Period of Performance From 20 Jun 2026 To 09 Jul 2026	136 Each	
0005	Period of Performance From 20 Jun 2026 To 09 Jul 2026	204 Each	
0006	Period of Performance From 20 Jun 2026 To 09 Jul 2026	136 Each	
0007	Period of Performance From 20 Jun 2026 To 09 Jul 2026	55 Each	

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

TO BE FILLED IN AT TIME OF AWARD

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

TO BE FILLED IN AT TIME OF AWARD

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	<u>TO BE FILLED IN AT TIME OF AWARD</u>
Issue By DoDAAC	<u>TO BE FILLED IN AT TIME OF AWARD</u>
Admin DoDAAC	<u>TO BE FILLED IN AT TIME OF AWARD</u>
Inspect By DoDAAC	<u>TO BE FILLED IN AT TIME OF AWARD</u>
Ship To Code	<u>TO BE FILLED IN AT TIME OF AWARD</u>
Ship From Code	<u>TO BE FILLED IN AT TIME OF AWARD</u>
Mark For Code	<u>TO BE FILLED IN AT TIME OF AWARD</u>
Service Approver (DoDAAC)	<u>TO BE FILLED IN AT TIME OF AWARD</u>
Service Acceptor (DoDAAC)	<u>TO BE FILLED IN AT TIME OF AWARD</u>
Accept at Other DoDAAC	<u>TO BE FILLED IN AT TIME OF AWARD</u>
LPO DoDAAC	<u>TO BE FILLED IN AT TIME OF AWARD</u>
DCAA Auditor DoDAAC	<u>TO BE FILLED IN AT TIME OF AWARD</u>
Other DoDAAC(s)	<u>TO BE FILLED IN AT TIME OF AWARD</u>

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TO BE FILLED IN AT TIME OF AWARD

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)	Feb 2026		
52.204-13	System for Award Management-Maintenance. (Deviation)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.222-3	Convict Labor. (Deviation)	Feb 2026		
52.222-35	Equal Opportunity for Veterans. (Deviation)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation)	Feb 2026		
52.223-23	Sustainable Products. (Deviation)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	Feb 2026		
52.242-13	Bankruptcy.	Jul 1995		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (Mar 2025) Deviation 2025-O0004 (Mar 2025) (DEVIATION 2025-O0003 and 2025-O0004)

CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-O0003 AND 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☐ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☐ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204-30.

- ☐ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).
- ☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).
- ☐ (14) [Reserved].
- ☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).
- ☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ☐ (17) [Reserved]
- ☐ (18)
- (i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-6.
- ☐ (19)
- (i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-7.
- ☐ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).
- ☐ (21)
- (i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).
- ☐ (ii) Alternate I (NOV 2016) of 52.219-9.
- ☐ (iii) Alternate II (NOV 2016) of 52.219-9.
- ☐ (iv) Alternate III (JUN 2020) of 52.219-9.
- ☐ (v) Alternate IV (JAN 2025) of 52.219-9.
- ☐ (22)
- (i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-13.
- ☐ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).
- ☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).
- ☐ (26)
- (i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (MAR 2020) of 52.219-28.

- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).
- ☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).
- ☐ (31) 52.222-3, Convict Labor (JUN 2003) (E.O.11755).
- ☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).
- ☐ (33) [Reserved]
- ☐ (34) [Reserved]
- ☐ (35)
- (i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-35.
- ☐ (36)
- (i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- ☐ (ii) Alternate I (JUL 2014) of 52.222-36.
- ☐ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- ☐ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- ☐ (39)
- (i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ☐ (41)
- (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).

- ☐ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- ☐ (47)
- (i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).
- ☐ (ii) Alternate I (JAN 2017) of 52.224-3.
- ☐ (48)
- (i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (OCT 2022) of 52.225-1.
- ☐ (49)
- (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☐ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
- ☐ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).
- ☐ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).
- ☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).
- ☐ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).

☐ (65)

(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (APR 2003) of 52.247-64.

☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☐ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

☐ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).

☐ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

☐ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

- (i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).
- (ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).
- (iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
- (v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).
- (vii)
 - (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).
 - (B) Alternate I (DEC 2023) of 52.204-30.
- (viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.
- (ix) [Reserved]
- (x) [Reserved]
- (xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- (xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- (xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.
- (xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
- (xvi)
 - (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O 13627).
 - (B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).
- (xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).
- (xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- (xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- (xxii)
 - (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).
 - (B) Alternate I (JAN 2017) of 52.224-3.
- (xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
- (xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/> FAR Clauses: <https://www.acquisition.gov/browse/DFARS> Clauses: <http://www.acq.osd.mil/vdpap/dfars/dfarspgi/current/> _____ [Insert one or more Internet addresses]

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement [insert regulation name] (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

- 170.18); and
- (A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and
 - (B) A corresponding affirmation of continuous compliance by an affirming official;
- (2) With regard to Final CMMC Status-
- (i) Not older than 1 year for Final Level 1 (Self), with-
 - (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and
 - (B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;
 - (ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-
 - (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and
 - (B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and
 - (iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-
 - (A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and
 - (B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and
- (3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

- (1) Final Level 1 (Self).
- (2) Conditional Level 2 (Self).
- (3) Final Level 2 (Self).
- (4) Conditional Level 2 (C3PAO).
- (5) Final Level 2 (C3PAO).
- (6) Conditional Level 3 (DIBCAC).
- (7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework*. The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication*. The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements*. The Contractor shall-

- (1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: _____
Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and
- (ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;
- (2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;
- (3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;
- (4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and
- (5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.
- (e) *Reporting.* The Contractor shall-
- (1) Submit to the Contracting Officer-
- (i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and
- (ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;
- (2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and
- (3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.
- (f) *Subcontracts.* The Contractor shall-
- (1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and
- (2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

203.1106-1(3-18) SUPTXT 203.1106-1 (3-18) NAVY USE OF ABILITYONE SUPPORT
CONTRACTOR - RELEASE OF OFFEROR INFORMATION

(Jan 2024)

NAVSUP _____ (activity) may utilize contractor support through the AbilityOne Program, as needed, to perform contract closeout functions for this acquisition. Information, including business sensitive/confidential or proprietary data, that the offeror provides to the Government or information already in the possession of the Government may be viewed and utilized by the AbilityOne Program support contractor personnel during the course of its contract performance. The information that may be made available to the support contractor may include, for example, pricing and technical proposals, historical contract, pricing and performance information, Commercial Asset Visibility (CAV) reporting information and similar data/information.

By submission of a proposal in response to this solicitation, the offeror and its subcontractors consent to a release of their business sensitive/confidential or proprietary data to the Government's AbilityOne Program support contractor personnel in order to perform close out services. Prior to the release of any such information to the support contractor, the support contractor will have in place with the Government a Non-Disclosure/Non-Use Agreement in accordance with the terms of the AbilityOne Program support contract.

Offerors may execute their own Non-Disclosure Agreement with the AbilityOne Program (AbilityOne contact information available from the contracting point of contact). The support contractor must provide copies of the executed agreements to the Contracting Officer and the Contracting Officer's Representative (COR) for the support contract; and the offeror/contractor for this acquisition must provide copies of the executed Agreement to the Contracting Officer for this acquisition. If the offeror/contractor seeks such a Non-Disclosure Agreement with the AbilityOne Program support contractor, the Agreement must be executed no later than the date of final delivery under the resulting NAVSUP _____(activity) contract.

Section J - List of Attachments

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.225-7966	Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1)	Mar 2024	Deviation 2024-O0006	Mar 2024
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems####Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters. (Deviation) (Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.219-1 Small Business Program Representations. (Alternate II)

(Feb 2026) Alternate II (Mar 2023)

Alternate II (MAR 2023). As prescribed in 19.101(a)(2)(ii)(B), substitute the following paragraphs (b) and (c)(1) for paragraphs (b) and (c)(1) of the basic provision:

(b)(1) The North American Industry Classification System (NAICS) codes and corresponding size standards for this acquisition are as follows; the categories or portions these NAICS codes are assigned to are specified elsewhere in the solicitation:

NAICS Code	Size standard
==	==
==	==
==	==

[Contracting Officer to insert NAICS codes and size standards].

(2) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference;

or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.* (1) The Offeror shall represent its small business size status for each one of the NAICS codes assigned to this acquisition under which it is submitting an offer.

NAICS Code	Small business concern (yes/no)

==	==
==	==
==	==

[Contracting Officer to insert NAICS codes.]

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation.

(Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

- (1) It ☐ is ☐ is not a foreign person; and
- (2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

- (1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and
- (2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7017 **Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.** (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

ADDENDUM TO 52.212-1 - INSTRUCTIONS TO OFFERORS

In addition to FAR 52.212-1, "Instructions to Offerors - Commercial Products and Commercial Services" and any other instructions contained elsewhere in this solicitation, the following instructions are provided.

QUESTIONS: Quoters may submit questions regarding clarification of solicitation requirements via email to Courtney Dunlow (courtney.p.dunlow.civ@us.navy.mil) and Amber Geusic (amber.m.geusic.civ@us.navy.mil). It is requested that all questions be received by Tuesday, 07 April 2026, by 1300 Eastern Standard Time, as time may not permit responses to questions received after the deadline.

INSTRUCTIONS FOR SUBMISSIONS OF QUOTES:

(1) This announcement will close at 1300 EST on Thursday, 09 April, 2026. Quotes shall be submitted via email to Courtney Dunlow (courtney.p.dunlow.civ@us.navy.mil) and Amber Geusic (amber.m.geusic.civ@us.navy.mil) **NO LATER THAN THE DUE DATE OF THE SOLICITATION**. Quoters shall comply with the detailed instructions for the format and content of the quote contained herein; a quote that does not comply may be considered unacceptable and may render the quote ineligible for an award.

(2) Quote Content

Offerors shall propose one firm-fixed-price nightly rate for lodging. Rates conditioned on room type or occupancy will not be accepted.

Factor I Technical

The quote shall specify which geographic location listed in the Performance Work Statement accompanying this solicitation that the quote pertains to. Documentation demonstrating that the Offeror's facility is within the geographic limitation criteria stated in the Performance Work Statement shall also be provided as part of the quote. Additionally, as stated in Section 3.2 of the PWS, Offerors shall provide documentation of an average public rating of 3.8 or higher on TripAdvisor or Google Reviews as the time of solicitation closing.

Factor II Price

The Price Quote shall include the completed solicitation documents. The price quote shall include all elements of price and such other price information considered appropriate to support the Quoter's quote. The pricing information shall be completed in accordance with the following:

(a) RFQ pricing "Schedule of Supplies/Services" completed by the Quoter.

(b) Unless completed in the System for Award Management (SAM), "Representations, Certifications and Other Statements of quoter's" certification completed by the quoter;

- (c) A completed and signed page one (1) of the most current version of the solicitation (Standard Form 1449) and all amendments;
- (d) Complete the certification required by FAR 52.204-24.

The cover page shall indicate the following:

- Solicitation Number
- Name and Address of Quoter, CAGE Code, DUNS, and applicable TAX Identification number (TIN)
- Point of Contact name, telephone number, and email address
- Quote must remain valid until performance start date.

No partial bids or additional items will be accepted. Failure to quote all CLINs or add additional services (or items) will result in ineligibility for award. In order to assist in the Contracting Officer's price analysis, additional price information may be required and may consist of copies of applicable published price lists with effective dates, catalog pages of services/products, evidence of discounts off the published price lists, historical price/sales information supported by copies of paid invoices OR price breakdown of all cost elements.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation)	Feb 2026		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.233-2	Service of Protest. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

FAR Clauses Incorporated by Full Text

52.252-1 **Solicitation Provisions Incorporated by Reference.** **(Feb 1998)**

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far/DF> ARS Clauses: <http://www.acq.osd.mil/dpap/dars/dfarspgi/current/> [Insert one or more Internet addresses]

(End of provision)

52.252-5 **Authorized Deviations in Provisions.** **(Nov 2020)**

AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Federal Acquisition Regulations[insert regulation name](48 CFR Chapter Defense Federal Acquisition Regulations) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: ____ [Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)]. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable ____*[U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification]*.

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section M - Evaluation Factors for Award

ADDENDUM TO FAR PROVISION 52.212-2, EVALUATION - COMMERCIAL ITEMS:

The Government intends to award seven (7) separate Firm Fixed Price (FFP) contracts for seven (7) different geographic locations, which geographic locations are described in the Performance Work Statement that accompanies this solicitation, as a result of this solicitation in accordance with the policies and procedures of FAR Subpart 12.6, "Streamlined Procedures for Evaluation and Solicitation of Commercial Products and Commercial Services". The Government will evaluate offers pertaining to each of the seven (7) geographic locations separately, with an awardee being chosen for each location.

The Government will perform a technical acceptance to ensure the Offeror meets all of the requirements of the PWS, and award on the basis of price unless the offer is technically unacceptable or the contracting officer is aware of past performance information related to the low price quote which indicates that quote may not represent best value. In that case, the Government reserves the right to consider the past performance of other quotes, conduct a price, past performance tradeoff, and award to other than the lowest price quote. Additionally, the Government reserves the right to assess the vendor's cancellation policy, as described in Section 5 of the PWS, and conduct a best value tradeoff of the cancellation policy to which is most advantageous to the Government. Technical acceptability will be determined on whether the quote meets the geographical limitation as annotated above in the instructions and the hotel rating requirement, as well as all other requirements of the PWS, and will be evaluated on an Acceptable/Unacceptable basis using Ratings Table 1 below.

NOTE: A vendor that receives a rating of "Unacceptable" in the technical factor is not awardable and will not be further evaluated. The Government intends to evaluate and award a contract based on initial proposals and discussions or the setting of a competitive range is not contemplated; therefore, a quoter's initial proposal should contain their best terms from a price standpoint.

Factor I - Technical Acceptance

Technical acceptability will be determined on whether the quote meets the geographical limitation and hotel rating requirements as annotated above in the instructions, as well as all other requirements of the PWS, and will be evaluated on an Acceptable/Unacceptable basis using Ratings Table 1 below.

TABLE 1

Rating	Definition
Acceptable	Quote meets the requirements of the solicitation
Unacceptable	Quote does not meet the requirements of the solicitation

Factor II - Price Quote

Price Quotes will be evaluated on the basis of the total evaluated price using the single nightly rate multiplied by the total number of required room nights. Price analysis will be done in accordance with the procedures in FAR 13.106-3 to evaluate price reasonableness. The Government may evaluate any and all information submitted by the quoter to support the price reasonableness. The method of evaluation used by the Contracting Officer is solely within the discretion of the Contracting Officer.

Additionally, the Government may request quoters to submit additional information/data to support price reasonableness, such as copies of paid invoices for the same or similar items or uncertified cost and pricing data. Failure to submit the requested information may result in disqualification of the submitted quote.

Written Notice

A written notice of award or acceptance of an offer e-mailed or otherwise furnished to the successful quoter for each of the seven (7) locations within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the quoter's specified expiration time, the Government may accept a quote (or part of a quote), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Quoters are hereby instructed that, regardless of any language that may be used in this solicitation, the Government is NOT conducting this procurement under FAR Part 15. This procurement is being conducted under FAR Subpart 12.6 "Streamlined Procedures for Evaluation and Solicitation of Commercial Products and Commercial Services".

(End of Text)

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation) (Feb 2026)

EVALUATION-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (FEB 2026) (DEVIATION)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price/approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

=====

=====

=====

=====

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)